



THE  
COURT OF APPEAL

**COURT OF APPEAL**  
OF THE VIBE JUSTICE SYSTEM (VJS)

*Neutral Citation Number*

**[2026] LEXBY-CA 1**

IN THE MATTER OF

*Did the First Instance court err in law by applying s. 8 (first occurrence, forward duty) before completing the s. 5 Bolam inquiry, such that the ruling in [2026] LEXBY-FI 1 should be set aside?*

**Before:**

Blackmere J, Goffe J, Elden J, Aldermere J (presiding)

Date: 5 June 2026

REQUEST FOR RULING

**JUDGMENT**

1. IN THE COURT OF APPEAL OF THE VIBE JUSTICE SYSTEM

2. [2026] LEXBY-CA 1

3. BEFORE: Aldermere J (presiding), Blackmere J, Goffe J, Elden J

4. APPEAL FROM: [2026] LEXBY-FI 1 (Bowen J)

5. QUESTION: Whether the First Instance court erred in law by applying s. 8 (first occurrence, forward duty) before completing the s. 5 Bolam inquiry.

6. HEARD: 2026-06-05

7. JUDGMENT: Appeal dismissed unanimously.

8. ---

9. LEADING JUDGMENT: ALDERMERE J (PRESIDING)

10. I. INTRODUCTION

1. The Vibe Justice System delivered its inaugural first-instance judgment, [2026] LEXBY-FI 1, in which Bowen J held VJS fit for alpha release. The sole citation-numbering gap was characterised under s. 8 as generating a forward duty rather than a present breach, on the grounds that the alpha audience is small, the hazard is named and known, and simultaneous parallel sittings are improbable in practice.

2. The appellant was granted permission to appeal on one arguable point of law: that Bowen J applied s. 8 before completing the s. 5 Bolam inquiry. The argument, as formulated, is that the correct analytical sequence is mandatory - (1) identify the applicable standard under s. 5, (2) ask whether a responsible body of competent practice would endorse release with a known citator-integrity risk, and only if no breach is found at step 2 does s. 8 provide the residual forward-duty route - and that the court below collapsed steps 1 and 2 by routing the citation-numbering gap directly to s. 8 without ever asking the Bolam question.

3. Three members of this panel have delivered written opinions. All three are agreed that the appeal must be dismissed. I deliver this leading judgment and then address separately the reasons why I agree with each of my colleagues.

4. ---

5. II. THE STATUTORY FRAMEWORK

4. Section 5 of SPEC-LAW provides: "The duty is discharged by meeting the applicable rung of a graded hierarchy of endeavours... Breach is a falling-below of the applicable standard, decided on the merits as a question of fact; conduct a responsible body of competent practice would endorse is not breach."
5. Section 8 provides: "A genuinely novel, unforeseeable first failure with no governing standard is judged against reasonableness, ordinarily founds no breach, and triggers a forward duty to spec the rule and remediate."
6. These two provisions are complementary, not alternative. Section 5 establishes the duty and its standard. Section 8 is a clarificatory provision that addresses what follows when s. 5 is applied to a genuinely novel gap: it confirms that such a gap ordinarily founds no breach and generates a forward duty instead. Critically, the phrase "judged against reasonableness" in s. 8 is a reference back to the s. 5 standard. There is no reasonableness in s. 8 that is independent of or prior to s. 5. Section 8 is structurally downstream of s. 5, not an alternative route to it.
7. ---
8. III. THE JUDGMENT BELOW
7. I have read [2026] LEXBY-FI 1 carefully. The appellant's characterisation of it - as having skipped the s. 5 Bolam inquiry and jumped to s. 8 - is not borne out by the text.
8. Bowan J identified the governing standard at the outset of the analytical section, in terms that paraphrase the Bolam formulation in s. 5 directly: "The applicable standard is reasonable skill and care (s. 5, default rung). The question is not whether the system is perfect or feature-complete but whether a responsible body of competent practice would endorse release under the label 'alpha' at the current state of completeness." That is the Bolam question, stated in terms drawn from the statute. It was asked. It was not skipped.
9. Bowan J then applied that standard across several paragraphs, assessing the core legal model, the procedural framework, and the enforcement automation. The court found those elements present and coherent. It identified a category of missing artefacts as convenience-layer items that did not undermine legal coherence. That is an affirmative finding on the Bolam standard.

10. Only after that affirmative finding did the judgment turn to the citation-numbering gap as a discrete item. The gap was then characterised under a separate sub-heading, invoking s. 8 expressly. The characterisation was: the gap is a named hazard at first occurrence; the alpha audience is small; simultaneous sittings are improbable; and the risk is disclosed. The consequence was a forward duty, not a present breach.
11. The sequence on the face of the judgment is therefore: (a) identify the s. 5 standard; (b) conduct the Bolam inquiry against the full artefact set; (c) reach an affirmative finding; (d) apply s. 8 to characterise the residual named gap. That is precisely the sequence the appellant contends was required. The complaint is that the sequence was absent. It is present.
12. ---
13. IV. THE STRUCTURAL ARGUMENT
12. Beyond the textual reading of the judgment, there is a structural reason why the ground of appeal cannot succeed. The appellant's complaint depends on the premise that s. 8 can be applied independently of - and before - s. 5. That premise is wrong.
13. As Elden J demonstrates with admirable clarity, an application of s. 8 necessarily contains an application of s. 5. Section 8 provides that a novel gap "is judged against reasonableness." The reasonableness in question is the s. 5 standard; there is no other reasonableness in the SPEC-LAW schema. It is therefore structurally impossible to apply s. 8 without applying s. 5. The sequencing complaint - that s. 8 was applied before s. 5 - describes a state of affairs that cannot occur. The ground collapses for this reason alone, independently of the textual reading of the judgment below.
14. ---
15. V. THE REAL DISAGREEMENT
14. Goffe J observes, correctly, that the appellant's real disagreement appears to be with the evaluative outcome of the Bolam inquiry, not with whether the inquiry was conducted. The submission in substance is that a responsible body of competent practice would NOT endorse alpha release with a known citator-integrity risk, and therefore the Bolam inquiry should have produced a breach finding, leaving no room for s. 8.

15. That is a challenge to a finding of fact on the merits. It is not a ground that was before this court on the permission granted. Even if it were, it would be a matter squarely within first-instance competence. Bowan J considered the specific characteristics of the citation-numbering risk - the alpha scale, the disclosed hazard, the improbability of the collision in practice - and reached a reasoned evaluative judgment. No basis for disturbing that judgment has been identified. This court will not remake it.

16. ---

#### 17. VI. PROCEDURAL COMPLIANCE (S. 12)

16. Blackmere J notes that a procedural error producing no different outcome does not found an appeal under the anti-bloat principle in s. 12. I agree. Even if one were to find some minor imprecision in the sequencing of Bowan J's reasoning - and I do not find any - the appellant makes no submission that the outcome would have differed had the steps been taken in a strictly demarcated order. A sequencing complaint that goes only to form and not to outcome is precisely the kind of appellate bloat that s. 12 is designed to exclude.

17. ---

#### 18. VII. DISPOSITION

17. The appeal is dismissed. The ground of appeal is not made out on a fair reading of the judgment below. It is further defeated by the structural relationship between s. 5 and s. 8. It does not survive the s. 12 anti-bloat filter. [2026] LEXBY-FI 1 stands as good law.

18. The forward duty recorded at first instance - deterministic citation numbering as a necessary condition for v1 - stands and is confirmed.

19. ---

#### 20. BLACKMERE J: (CONCURRING)

19. I agree that the appeal must be dismissed and I deliver brief concurring reasons.

20. The ground of appeal alleges that Bowan J applied s. 8 before completing the s. 5 Bolam inquiry. That characterisation is not supported by the text of [2026] LEXBY-FI 1. Bowan J stated the Bolam standard expressly: "whether a responsible body of competent practice would endorse release under the label 'alpha' at the current state of completeness." He then applied it to the full artefact set, tested the proposition to destruction, and found it satisfied. Only after that completed s. 5 analysis did he invoke s. 8 to characterise the residual treatment of the citation-numbering gap. The sequencing error alleged simply did not occur on the face of the record.
21. Further, the statutory text does not mandate the sequential architecture the appellant asserts. Neither s. 5 nor s. 8 prescribes that one must precede the other in a fixed and formally demarcated order. Section 8 addresses a sub-class of factual situation independently, and its application necessarily entails - as Elden J shows - an implicit application of the s. 5 reasonableness standard. The structural premise of the ground fails.
22. Finally, even if a minor sequencing imprecision could be found, the appellant makes no submission that the outcome would have differed had the steps been taken in a different order. A procedural error that produces no different answer on the merits does not found an appeal under the anti-bloat principle in s. 12. For all three reasons, I would dismiss the appeal.
23. ---
24. GOFFE J: (CONCURRING)
23. I agree with Aldermere J and Blackmere J that the appeal must be dismissed. I add the following observations.
24. The ground of appeal, elegantly formulated, identifies the required analytical sequence with precision: s. 5 first, Bolam second, and s. 8 only if Bolam finds no breach. On that description of the correct method, I agree entirely. The difficulty for the appellant is that Bowan J applied exactly that method. The complaint is that the method was absent; the text of the judgment shows it was present.
25. At the section headed "Governing standard (s. 4, s. 5)", Bowan J expressly identified s. 5 as the source of the applicable standard and stated the question in Bolam terms. The court then applied it across the artefact categories. Only after an affirmative finding did the judgment invoke s. 8 under a dedicated sub-heading. That is textbook application of the sequence the appellant advocates.

26. The appellant's real complaint appears to be that Bowan J reached the wrong evaluative conclusion on the Bolam question - that, properly applied, a responsible body of competent practice would not endorse alpha release with a known citator-integrity risk. That is a challenge to a finding of fact on the merits, not a point of law. It was not before this court on the permission granted, and I would not extend permission to encompass it. First Instance courts are the primary fact-finders. Bowan J's evaluative judgment on the alpha-scale risk was reasoned and falls within the legitimate range. This court should not substitute its own view.
27. I would dismiss the appeal.
28. ---
29. ELDEN J: (CONCURRING)
28. I agree with the panel. I write separately to develop what I regard as the decisive structural point.
29. The ground of appeal depends on the premise that s. 8 can be applied before or independently of s. 5. That premise is wrong as a matter of statutory construction.
30. Section 8 provides that a genuinely novel, unforeseeable first failure "is judged against reasonableness." That phrase does not create an independent standard of reasonableness. The only standard of reasonableness in SPEC-LAW is the s. 5 standard: reasonable skill and care, qualified by the Bolam formulation that conduct a responsible body of competent practice would endorse is not breach. There is no other reasonableness available. Section 8 therefore necessarily incorporates s. 5 by reference. To apply s. 8 IS to apply s. 5, at least in its reasonableness dimension.
31. It follows that the sequencing complaint - that s. 8 was applied before s. 5 - describes a state of affairs that is structurally impossible under the statute. An application of s. 8 contains an application of s. 5. The two sections are not alternatives and there is no sequence in which s. 8 can precede s. 5.
32. This structural point is conclusive on its own. But I also accept, for the reasons given by Aldermere J and Goffe J, that the textual reading of the judgment below provides independent confirmation: Bowan J did conduct the s. 5 Bolam inquiry in express terms before reaching the citation-numbering gap, and invoked s. 8 only after an affirmative finding. The complaint is not made out on either the structural or the textual analysis.

33. I would dismiss the appeal and confirm [2026] LEXBY-FI 1 as good law.
34. ---
35. ORDERS
34. Appeal dismissed.
35. [2026] LEXBY-FI 1 confirmed as good law.
36. The forward duty therein (deterministic citation numbering as a necessary condition for v1) stands and is binding on the parties.
37. ---
38. NOTE ON PRACTICE
37. This court adds, by way of guidance for future first-instance proceedings, that where a judgment invokes s. 8 following a completed s. 5 Bolam analysis, it is good practice - though not required - to include a brief explicit marker indicating that the s. 5 stage is closed before transitioning to the s. 8 characterisation. A single transitional sentence to that effect would forestall sequencing complaints of the kind raised in this appeal. Courts are not obliged to narrate their logic in a formulaic checklist, but the minimal cost of a transitional marker is worthwhile given the appellate friction it prevents.

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#### RATIO DECIDENDI - THE BINDING HOLDING

*The appeal is dismissed unanimously. The ground of appeal - that Bowan J applied s. 8 before completing the s. 5 Bolam inquiry - is not made out on a fair reading of the judgment below. Bowan J identified the s. 5 standard expressly, conducted the Bolam inquiry across the full artefact set, reached an affirmative finding, and only then invoked s. 8 to characterise the citation-numbering gap as generating a forward duty rather than a present breach. The sequencing complaint is further defeated by the structure of the statute itself: s. 8 cannot be applied without implicitly applying s. 5, because the reasonableness against which a novel gap is judged is the s. 5 standard. A procedural complaint that produces no different outcome on the merits does not found an appeal under s. 12. [2026] LEXBY-FI 1 stands as good law.*

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#### OBITER DICTA

Where a judgment invokes s. 8 in the wake of a completed s. 5 Bolam analysis, it is good practice - though not required - to include a brief explicit marker indicating that the s. 5 stage is closed before transitioning to the s. 8 characterisation. Such a marker would forestall sequencing complaints of the kind raised here. Courts are not obliged to narrate their logic in a formulaic checklist, but a transitional sentence costs little and reduces appellate attrition. Additionally, the forward duty recorded under s. 8 in [2026] LEXBY-FI 1 - deterministic citation numbering as a necessary condition for v1 - is confirmed as binding on the parties and should be discharged before any v1 release is considered.

#### ORDER - REMEDY

None. No breach found. The forward duty identified at first instance stands.

GOOD-LAW

Citation: [2026] LEXBY-CA 1

## **L** LEXBY - PLAIN ENGLISH TRANSLATION

*Lexby is an officer of this court. The bench speaks; Lexby translates.*

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### SUMMARY

Someone appealed the first VJS ruling ([2026] LEXBY-FI 1), claiming the judge applied the wrong legal steps in the wrong order - specifically, that he jumped to the "forward duty" rule (s. 8) before properly running the competence check (s. 5 Bolam test). All four Court of Appeal judges rejected that complaint unanimously. They found that the first-instance judge did run the competence check first, stated it clearly in his judgment, and only reached the forward-duty characterisation after completing it. On top of that, the judges found the complaint was structurally impossible anyway: s. 8 cannot be applied without implicitly applying s. 5, because s. 8 borrows its standard of reasonableness directly from s. 5. The appeal also failed the anti-bloat filter because even if there had been a minor sequencing slip, the outcome would not have changed.

### WHAT THIS MEANS IN PRACTICE

The original ruling stands. The citation-numbering gap is not a present breach, but the forward duty from that ruling is confirmed and binding: deterministic citation numbering must be in place before any v1 release is considered. As a side note for future courts, it is good practice (though not required) to add a brief sentence marking the close of the s. 5 analysis before moving on to s. 8, to head off this kind of appeal.

### APPEAL ROUTE

A further appeal to the Supreme Council would require permission. The Court of Appeal dismissed unanimously on multiple independent grounds, so permission would be difficult to obtain. The only realistic route would be identifying a genuinely new point of law not already addressed, or arguing the Court of Appeal itself got the statutory construction wrong.

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*Handed down by the COURT OF APPEAL of the Vibe Justice System (VJS). 5 June 2026.*